

SENATE No. 221

The Commonwealth of Massachusetts

PRESENTED BY:

William J. Driscoll, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to clarify the minimum age for the sale and purchase of adult-use products.

PETITION OF:

NAME:

William J. Driscoll, Jr.

DISTRICT/ADDRESS:

Norfolk, Plymouth and Bristol

SENATE No. 221

By Mr. Driscoll, a petition (accompanied by bill, Senate, No. 221) of William J. Driscoll, Jr. for legislation to clarify a consistent statewide minimum age for the sale and purchase of adult-use products. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to clarify the minimum age for the sale and purchase of adult-use products.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 157 of the Acts of 2018 are hereby amended by inserting the
2 following section:

3 Section 22A. The minimum legal age of purchase for alcohol, cannabis products, and
4 tobacco products is 21 years of age throughout the Commonwealth. The minimum age to
5 participate in online sports gaming is 21 years of age throughout the Commonwealth. A
6 consistent statewide minimum age for the purchase of these products and activities is a matter of
7 statewide concern. The ability of adult consumers to be able to access their preferred alcohol,
8 cannabis products, and tobacco products, or participate in online sports gaming, throughout the
9 Commonwealth is a matter of statewide concern. The ability of retailers to sell those products
10 and services to adult consumers is a matter of statewide concern. Notwithstanding any other
11 provision of law, this section shall preempt, supersede, or nullify any local prohibition or
12 restriction on the purchase or sale of alcohol, a cannabis product, or a tobacco product, or to

13 participate in online sports gaming, based on an individual's age or date or year of birth that
14 differs from the statewide minimum age to purchase such a product or participate in such an
15 activity, including but not limited to any local law that prohibits or restricts the sale of such
16 products or activities to persons who have reached the age of 21 or to persons who were born
17 after a particular date or year.

18 SECTION 2. The alcoholic beverages control commission, cannabis control commission,
19 department of public health, and gaming commission shall adopt, amend, or repeal any
20 regulations necessary to administer this Act.